

STATE OF NEW YORK

6599--A

2025-2026 Regular Sessions

IN ASSEMBLY

March 6, 2025

Introduced by M. of A. DILAN -- read once and referred to the Committee on Correction -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the correction law, in relation to establishing the office of chief medical examiner

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The correction law is amended by adding a new section 12 to
2 read as follows:

3 § 12. Office of chief medical examiner. 1. There shall be in the
4 department an independent office of the chief medical examiner, consist-
5 ing of the chief medical examiner, a deputy chief medical examiner, and
6 eight associate medical examiners, all of whom shall be appointed by the
7 governor and be doctors of medicine with a certification in forensic
8 pathology and have significant experience in death investigations.

9 2. The commissioner with respect to the office of chief medical exam-
10 iner shall exercise the powers and duties set forth in this chapter, but
11 shall not interfere with the performance by the chief medical examiner
12 or their office of the powers and duties prescribed by the provisions of
13 this section or any other law.

14 3. The chief medical examiner or their designee shall have such powers
15 and duties as may be provided by law in respect to bodies of persons
16 dying in a correctional facility, which shall include but not be limited
17 to:

18 (a) conducting independent autopsies, forensic investigations, and
19 collecting data for all deaths in correctional facilities;

20 (b) requiring the attendance and take testimony under oath of such
21 persons as such chief medical examiner may deem necessary and to require
22 the production of books, accounts, papers and other evidence relative to
23 any matter within the jurisdiction of the office;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 (c) publishing public annual reports that include individual-level
2 data detailing incarcerated individual deaths by year, cause of death,
3 manner of death, age, race/ethnicity, and sex;

4 (d) publishing public preliminary death reports for all incarcerated
5 individuals detailing date, time, preliminary cause of death, and manner
6 within ninety days of the death of such incarcerated individual; and

7 (e) delivering copies of all reports required pursuant to this section
8 directly to the appropriate district attorney, attorney general, the
9 commissioner, and the legislature.

10 § 2. This act shall take effect on the one hundred eightieth day after
11 it shall have become a law.